Orange Co FL 2001-0257071
06/12/2001 01:46:51pm
OR Bk 6278 Pg 5611
Rec 15.00

Prepared By and Return To:

Deborah H. Johnson, L.L.C.
Broad and Cassel
NationsBank Center
P.O. Box 4961
Orlando, Florida 32802-4961

For Recording Purposes Only

ASSIGNMENT AND ASSUMPTION
OF DECLARANT'S RIGHTS AND OBLIGATIONS
(PALMA VISTA)

KNOW ALL PERSONS BY THESE PRESENTS:

WHEREAS, SPRING TRACE, L.L.C., a Florida limited liability company, whose address is c/o SouthStar Development Partners, Inc., 255 Alhambra Circle, Suite 312, Coral Gables, Florida 33134 ("Assignor"), has conveyed to M/I SCHOTTENSTEIN HOMES, INC., an Ohio corporation, whose address is c/o 237 South Westmonte Drive, Suite 111, Altamonte Springs, Florida 32714 ("Assignee"), certain real property subject to the Declaration hereinafter described (the "Property"); and

WHEREAS, the Property is encumbered by that certain Declaration of Protective Covenants and Restrictions for Palma Vista recorded September 14, 1989 in Official Records Book 4115, Page 939; as amended by that certain Amendment to Declaration of Protective Covenants and Restrictions for Palma Vista recorded April 7, 1994 in Official Records Book 4723, Page 3053; and as further amended by that certain Second Amendment to Declaration of Protective Covenants and Restrictions for Palms Vista recorded February 25, 1997 in Official Records Book 5206, Page 176, and as further amended by that certain Assignment and Assumption of Declarant's Rights and Obligations, recorded October 25, 2000, in Official Records Book 6115, Page 4276, and as further amended by that certain Supplement to Declaration of Protective Covenants and Restrictions for Palma Vista recorded April 17, 2001 in Official Records Book 6237, Page 6151, and as further amended by that certain Joinder and Consent to Supplement to Declaration of Protective Covenants and Restrictions for Palma Vista recorded April 17, 2001 in Official Records Book 6237, Page 6154, and as further amended by that certain Joinder and Consent to Supplement to Declaration of Protective Covenants and Restrictions for Palma Vista recorded April 17, 2001 in Official Records Book 6237, Page 6157, all of the Public Records of Orange County, Florida (collectively, the "Declaration"); and

WHEREAS, Assignor is the Declarant under the Declaration; and

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WHEREAS, Assignor has agreed to assign to Assignee all of Assignor's rights, privileges, powers, authorities, liabilities and obligations as the Declarant or the Developer granted or reserved in, to and under the Declaration (collectively, "Declarant's Rights and Obligations"), and Assignee has agreed to accept and assume Declarant's Rights and Obligations from and after the date hereof.

NOW, THEREFORE, for and in consideration of the sum of Ten Dollars ($10.00) and other valuable consideration the receipt and sufficiency of which are hereby acknowledged by Assignor and Assignee, Assignor does hereby assign and transfer to Assignee, without representation or warranty, all of the Declarant's Rights and Obligations and Assignee hereby accepts, assumes and agrees to perform and abide by all of the Declarant's Rights and Obligations from and after the date hereof.

IN WITNESS WHEREOF, Assignor and Assignee have caused this Assignment and Assumption of Declarant's Rights and Obligations to be executed as of the 8th day of June, 2001.

Signed, sealed and delivered
in the presence of:

ASSIGNOR:

SPRING TRACE, L.L.C.
a Florida limited liability company

By: _____
Nathan D. Benson, Manager

_____
Print Name: Forrest Rollins

_____
Print Name: KRISTEN P. MCKINZIE

STATE OF VIRGINIA)
COUNTY OF Virginia Beach)

I hereby certify that the foregoing instrument was acknowledged before me this 1 day of June, 2001 by Nathan D. Benson, as Manager of SPRING TRACE, L.L.C., a Florida limited liability company. He is [✓] personally known to me, or has produced _____ as identification.

_____
NOTARY PUBLIC
Notary Stamp Below

My Commission Expires November 30, 2004

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For Recording Purposes Only

Signed, sealed and delivered
in the presence of:

ASSIGNEE:

M/I SCHOTTENSTEIN HOMES, INC.,
an Ohio corporation

Janis A Eckstein
Print Name: Janis A. Eckstein

By:
Name: Steven Schottenstein
Its: Chief Operating Officer

Laura J. Elliott
Print Name: Laura J. Elliott

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Orange Co FL 2001-0257071
Recorded - Martha O. Haynie

STATE OF Ohio)
COUNTY OF Franklin)

I hereby certify that the foregoing instrument was acknowledged before me this 6 day of June, 2001 by Steven Schottenstein, as Chief Operating Officer of M/I SCHOTTENSTEIN HOMES, INC., an Ohio corporation. He/~~She~~ is [ ] personally known to me, ~~or has produced~~ as identification.

Janis A Eckstein
NOTARY PUBLIC
Notary Stamp Below

NOTARIAL SEAL STATE OF OHIO

JANIS A. ECKSTEIN
NOTARY PUBLIC, STATE OF OHIO
MY COMMISSION EXPIRES JULY 27, 2002